

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

June 25, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	25-01477343 <i>Alphapet, Inc. vs. Wagner</i>	Motion for Attorney Fees Defendants’ Motion for Attorney Fees and Costs on Granting of Anti-SLAPP Motion is GRANTED in part. Procedural History: In the FAC, Plaintiff generally alleges the Plaintiff LLC started its business with a \$667,000 contribution from its majority member, Homman Holding. (FAC, ¶ 12.) The lawyer Defendants represented the LLC as well as the individual members Harold Epps, Liping Wang, and Liming Wang, who allegedly engaged in actions against the interests of the LLC including taking/wrongfully disposing of its assets and harming Homman’s capital investment. (¶¶ 13, 33.) On 11/20/25, the Court granted Defendants’ anti-SLAPP motion to strike portions of Plaintiff’s First Amended Complaint (FAC). The Court granted the motion as to paragraphs 35, 36, 41, 53, and 62 which alleged litigation privileged conduct related to filing and/or service of specific documents in the course of litigation. (Civ. Code § 47.) The Court denied the motion as to paragraphs 25 and 26, which were professional negligence allegations falling outside the protection of the anti-SLAPP statute under Freeman v. Schack (2007) 154 Cal.App.4th 719 and Kolar v. Donahue, McIntosh & Hammerton (2006) 145 Cal.App.4th 1532. Defendants now seek attorney fees and costs of \$45,596.04 related to their successful anti-SLAPP motion. Legal Standard: Code of Civil Procedure section 425.16(c)(1) provides, “Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5.” However, a party who prevails on an anti-SLAPP motion which is only an “illusory” or “minimal and insignificant” victory with no “practical effect” is not entitled to recover their attorney fees. (See Lin v. City of Pleasanton (2009) 176 Cal.App.4th 408, 425–426; Moran v. Endres (2006) 135 Cal.App.4th 952, 954–955.) Merits: Defendants contend they achieved a substantial practical benefit from their successful anti-SLAPP motion because all paragraphs related to their alleged filing and service of documents in the underlying litigation were removed from the FAC.

		Plaintiff contends the motion did not have a practical effect because it did not entirely dispose of any entire cause of action and only removed five incidental paragraphs of the 71-paragraph FAC. Rather, Plaintiff argues the motion “back-fired on defendants because the result was an even stronger amended pleading which asserts the same core claims as the one which defendants’ motion challenged.” (Opp. at p. 2:2-4.) Defendants have also filed a motion to strike the SAC, set for hearing on July 16. The Court finds Defendants achieved a substantial practical benefit from their successful anti-SLAPP motion. The California case law cited above does not require Defendants to prevail as to an entire cause of action in order to recover fees. The disputed paragraphs of the FAC included factual allegations that formed a substantial part of the basis for Plaintiff’s professional negligence claim against Defendants. Specifically, Defendants removed the allegations that they improperly “concealed the sales of AlphaPet” in court filings and appearances and prevented the disclosure of records in response to subpoenas in order to conceal the alleged conversion of the business. (¶¶ 35, 36.) Defending against such claims would likely have required substantial discovery, investigation, and other preparation. Defendants substantially narrowed Plaintiff’s claims against them and are entitled to attorney fees related to the motion. As to the amount of fees, Defendants state they actually incurred attorney fees of \$14,593.50 related to the present motion, based on 17.9 hours of associate time at \$315/hour and 19.9 hours of partner time at \$450/hour. (Saunders Decl., ¶¶ 4-9.) Defendants also incurred filing costs of \$180 for each motion. However, Defendants seek to adjust attorney Jennifer Saunders’s rate upwards to \$1,203.07 per hour based on her 40+ years of experience under the Laffey Matrix, which is a fee schedule sometimes used by federal courts to determine. (Saunders Decl., Ex. B.) The Court finds Defendants’ actually-incurred fees were within a reasonable range for handling a relatively straightforward anti-SLAPP motion in Orange County and declines to adjust the rates upward under the Laffey Matrix, which is informative but has not been held to be binding on California courts. Because the Court only granted the SLAPP motion as to 80% of the allegations addressed in the motion, the amount of fees will be reduced by 20%. Therefore, the motion is granted in the total amount of \$11,962.80 (fees of \$14,593.50 + costs of \$360 x .8).
2	24-01371395 <i>Battersby vs. Hutchens</i>	1) Motion for Judgment on the Pleadings 2) Motion for Sanctions Motion 1: Motion for Judgment on the Pleadings

Defendants Wrubleski Meeks Corporation and Belen Rodriguez motion for judgment on the pleadings is GRANTED with 20 days leave to amend.

On 1/9/24, plaintiff Gregory N. Battersby filed the Complaint against defendant Betty Hutchens (“Hutchens”) alleging ten causes of action for (1) Breach of Contract; (2) Breach of Covenant of Good Faith and Fair Dealing; (3) Negligent Misrepresentation; (4) Fraud; (5) Constructive Eviction (6) Breach of Implied Warranty of Quiet Enjoyment; (7) Unfair Competition; (8) Wrongful Eviction; (9) Unjust Enrichment; and (10) Violation of Civil Code, section 1946.2.

Plaintiff subsequently named Belen Rodriguez (“Rodriguez”) and Wrubleski Meeks Corporation (“WM”) (collectively, “Moving Defendants”) as Does 1 and 2, respectively.

Moving Defendants move for judgment on the pleadings as to each of the cause of action.

1st, 2nd, 5th, 6th and 8th-10th Causes of Action

Moving Defendants argue the contract based claims, i.e. the 1st and 2nd causes of action, fail because there is no contractual relationship between Defendants and Plaintiff as evidence by the Lease Agreement attached as Exhibit A to the Complaint. Plaintiff explicitly concedes this point. (See Opposition, p. 3:1-2.)

Plaintiff also implicitly concedes the 5th, 6th and 8th-10th causes of action are not properly brought against Moving Defendants because he states “the Complaint, as pled, contains three causes of action against which Plaintiff intends to bring against Defendants, namely: negligent misrepresentation, fraud, and unfair competition[.]” (see Opposition, p. 3:2-4) and fails to address the 5th, 6th and 8th-10th causes of action in the opposition (see, generally, Opposition).

Therefore, the motion is GRANTED as to the 1st, 2nd, 5th, 6th and 8th-10th causes of action, with 20 days leave to amend.

3rd and 4th Causes of Action: Negligent Misrepresentation and Fraud

“A complaint for fraud must allege the following elements: (1) a knowingly false representation by the defendant; (2) an intent to deceive or induce reliance; (3) justifiable reliance by the plaintiff; and (4) resulting damages.” (*Service by Medallion, Inc. v. Clorox Co.* (1996) 44 Cal.App.4th 1807, 1816.)

“The elements of negligent misrepresentation are (1) a misrepresentation of a past or existing material fact, (2) made without reasonable ground for believing it to be true, (3) made with the intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.” (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 196.)

The elements of fraud are (1) misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity; (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.) “The elements of a claim for negligent misrepresentation are nearly identical. Only the second element is different, requiring the absence of reasonable grounds for believing the misrepresentation to be true instead of knowledge of its falsity.” (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1166, *disapproved of on other grounds by Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice . . . This particularity requirement necessitates pleading *facts* which show how, when, where, to whom, and by what means the representations were tendered.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 [emphasis in original].) In the case of a corporate defendant, “the plaintiff must allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Ibid.*)

Here, the Complaint does not allege any facts against Moving Defendants. Therefore, it fails to allege the fraud claims with the requisite specificity. The facts supporting the fraud claims are specifically alleged against Hutchens not Moving Defendants. For example, the Complaint identifies two representations defendant Hutchens made to Plaintiff to support the fraud claims. (See Compl., ¶¶ 11-13, 16, 23, 37-38, 46-50.) However, the Complaint does not allege either Moving Defendant made any representations to Plaintiff. Referring to all defendants as a singular “Defendant” in the Complaint does not comply with the specificity requirement for fraud claims. (See *Lazar, supra*, 12 Cal.4th at p. 645.)

Therefore, the motion as to the 3rd and 4th causes of action is GRANTED, with 20 days leave to amend.

7th Cause of Action: Unfair Competition

“The UCL outlaws as unfair competition any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” (*Morgan v. AT&T Wireless Services, Inc.* (2009) 177 Cal.App.4th 1235, 1253, quoting Bus. & Prof. Code, § 17200.) “An ‘unlawful’ activity is any business activity that is forbidden by law. A ‘fraudulent’ activity includes any act or practice likely to deceive the public, even if no one is actually deceived.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 907.) None of the elements of common law fraud are required to state a UCL claim based on the fraudulent business practice prong. (*Morgan, supra*, 177 Cal.App.4th at p. 1255.)

“Under the UCL's unfairness prong, courts consider either: (1) whether the challenged conduct is ‘tethered to any underlying constitutional, statutory or regulatory provision, or that it threatens an incipient violation of an antitrust law, or violates the policy or spirit of an antitrust law,’ (*Durell v. Sharp Healthcare*, 183 Cal. App. 4th 1350, 1366, 108 Cal.Rptr.3d 682 (2010)); (2) whether the practice is ‘immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers,’ *Morgan v. AT&T Wireless Servs., Inc.*, 177 Cal. App. 4th 1235, 1254, 99 Cal.Rptr.3d 768 (2009); or (3) whether the practice's impact on the victim outweighs ‘the reasons, justifications and motives of the alleged wrongdoer.’ *Id.*” (*Doe v. CVS Pharmacy, Inc.* (9th Cir. 2020) 982 F.3d 1204, 1214–1215.)

The plaintiff must also plead facts sufficient to establish standing to bring the UCL claim, i.e., that the plaintiff “has suffered injury in fact and has lost money or property as a result of the unfair competition.” (*Morgan, supra*, 177 Cal.App.4th at pp. 1253, 1257, quoting Bus. & Prof. Code, § 17204.) Where the UCL claim is based on the fraudulent prong, the plaintiff must allege “actual reliance” and “defendant’s misrepresentations were an immediate cause of the injury-causing conduct.” (*Id.* at p. 1257.) However, “the plaintiff is not required to allege that those misrepresentations were the sole or even the decisive cause of the injury-producing conduct. Furthermore, where . . . a plaintiff alleges exposure to a long-term advertising campaign, the plaintiff is not required to plead with an unrealistic degree of specificity that the plaintiff relied on particular advertisements or statements.” (*Ibid.*)

Here, the Complaint does not allege any specific facts against Moving Defendants. In his opposition, Plaintiff merely copies and pastes the allegations from the Complaint and claims they are sufficient. However, the allegations are conclusory and devoid of facts identifying the Moving Defendants or their alleged involvement in this matter.

The motion is GRANTED as to the 7th cause of action, with 20 days leave to amend.

Motion 2: Motion for Sanctions

Plaintiff Greg Battersby’s motion for issue sanctions and monetary sanctions is DENIED, in part, as to nonmonetary sanctions and GRANTED, in part, as to monetary sanctions in the reduced amount of \$1,358.

Plaintiff seeks issue and contempt sanctions against defendant Betty Hutchens (“Hutchens”), as well as monetary sanctions in the amount of \$4,074 against Hutchens and her counsel of record, Harry Safarian, Esq., on the grounds that Hutchens failed to comply with the Court’s 7/17/25 Minute Order.

If a party fails to obey a court order compelling it to provide further responses to interrogatories or requests for production, “the court may

		make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction . . . In lieu of or in addition to this sanction, the court may impose a monetary sanction . . .” (Code Civ. Proc., §§2030.300, subd. (e), 2031.310, subd. (i).) In addition, misuse of the discovery process is subject to monetary and nonmonetary sanctions, including contempt. (Code Civ. Proc., § 2023.030, subds. (a)-(e).) Disobeying a court order constitutes misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (g).) “The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should attempt [] to tailor the sanction to the harm caused by the withheld discovery. The trial court cannot impose sanctions for misuse of the discovery process as a punishment. [¶] The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery. If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992 [cleaned up].) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful. [Citation.]” (<i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559 [italics in original]; <i>Valencia v. Mendoza</i> (2024) 103 Cal.App.5th 427, 447, quoting <i>Vallbona v. Springer</i> (1996) 43 Cal.App.4th 1525.) On 7/17/25, the Court ordered Hutchens to serve further verified responses to Plaintiff’s Form Interrogatories, Set One, and Requests for Production of Documents, Set One, along with all responsive documents. (Greer Decl., ¶ 5, Ex. F.) The Court also ordered Hutchens pay monetary sanctions to Plaintiff in the amount of \$2,570.50. (Ibid.) Hutchens was ordered to comply within fourteen days, i.e. by 7/31/25. (Ibid.) On 7/17/25, following the Court’s order, Plaintiff served a Notice of Ruling on Hutchens via email. (Greer Decl. at ¶ 6, Ex. G.) On 1/6/26, Hutchens served verified further responses and monetary sanctions. (Safarian Decl., ¶ 7, Exs. B, C.) The responses indicate Hutchens is not in possession of responsive documents because they were destroyed before this lawsuit was filed. Therefore, although untimely, Hutchens has fully complied with the order.
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		The Court finds Hutchens' failure to timely comply was not willful but instead due to Defense counsel's medical issues and miscommunications in Defense counsel's office. (Safarian Decl., ¶¶ 3-6, Ex. A.) Plaintiff has not produced evidence refuting Defendant's reasons. Issue sanctions therefore are not warranted. Nevertheless, Plaintiff is entitled to recover the cost of preparing the instant motion in the amount of \$1,358 (2.3 hours researching and drafting the motion and another hour anticipated for reply and hearing at a rate of \$485/hour). The Court finds the hours expended and the hourly rate to be reasonable. Based on the foregoing, the motion is DENIED, in part, as to issue sanctions and GRANTED, in part, as to monetary sanctions. Defendant and her attorney Harry A. Safarian are ORDERED to pay Plaintiff monetary sanctions in the amount of \$1,358 within ten days.
3	22-01263671 Chavez vs. Prime Construction Group Inc.	Motion to Enforce Settlement Plaintiff Cesar Chavez's Motion to Enforce Settlement Agreement is DENIED. Plaintiff moves pursuant to Code of Civil Procedure section 664.6 to enforce the parties' Settlement Agreement and enter judgment against defendants Prime Construction Group, Inc., Joe Manoukian, Joe Manoukian dba JM Floors Décor, and JM Flooring Concepts (collectively, Defendants) in the amount of \$17,000 plus 10% interest from the date of breach. On 3/19/26, the Court continued the hearing on this motion to allow Plaintiff more time to file a Supplemental Brief by April 9, 2026 close of business. (ROA 153.) Defendants were allowed to file an opposition by April 23, 2026 close of business. (ROA 153.) The parties timely did so. Code of Civil Procedure section 664.6, subdivision (a), provides as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." In ruling on a motion to enforce settlement, "the trial court acts as the trier of fact, determining whether the parties entered into a valid and binding settlement. Trial judges may consider oral testimony or may determine the motion upon declarations alone. When the same judge hears the settlement and the motion to enter judgment on the settlement, he or she may consult his [or her] memory." (<i>Osumi v. Sutton</i> (2007) 151 Cal.App.4th 1355, 1360 [cleaned up].) However, "nothing in

section 664.6 authorizes a judge to *create* the material terms of a settlement, as opposed to deciding what terms *the parties themselves* have previously agreed upon. (*Ibid.* [emphasis in original].)

Existence of Agreement

On 4/22/25, the parties reached a settlement agreement wherein Defendants agreed to pay Plaintiff \$17,000.00 within 45 days of that agreement with the Court to retain jurisdiction to enforce the agreement pursuant to Civil Code Section 664.6. (See Shabini Decl., ¶ 3, Ex. 1.) The agreement is signed by all parties and their counsel. (*Ibid.*) Plaintiff's counsel attests that the attached agreement "is a true and correct copy of the settlement agreement reached in this matter." (*Ibid.*)

The Court finds Plaintiff and Defendants entered into a valid and binding settlement agreement during the pendency of this litigation. (See Shabini Decl., ¶ 3, Ex. 1.)

Defendants dispute the existence of a settlement agreement on two grounds. First, Defendants argue an attorney's signature on the agreement alone is insufficient and Plaintiff failed to demonstrate that all parties personally signed the agreement. Defendants' argument lacks merit. Effective 1/1/25, a writing is signed by a party if it is signed by the party or the party's attorney. (Code Civ. Proc., § 664.6 subd. (b)(1), (2); see also Civ. Code, § 1633.7, subd. (a) ["A ... signature may not be denied legal effect or enforceability solely because it is in electronic form."].) Here, the settlement agreement is electronically signed by defendant Joe Manoukian on behalf of each defendant on 4/9/25 and defense counsel on 4/8/25. (See Shabini Decl., ¶ 3, Ex. 1.) This is sufficient. Notably, neither Joe Manourkian nor Defense counsel dispute signing the agreement.

Second, Defendants argue Plaintiff failed to establish a "meeting of the minds" as to material terms because disputes remain as to timing, performance conditions, and other essential terms. However, Defendants fail to state specifically how the terms of the attached agreement are incomplete or insufficiently definite.

Breach of Settlement Agreement

Defendants argue Plaintiff fails to establish that "payment was due and owing under enforceable conditions" and that "any alleged delay or nonpayment may be excused or subject to conditions precedent." Defendants' conclusory contentions lack analysis and citation to supporting evidence.

Nevertheless, the Court agrees. While Plaintiff has established Defendants did not pay the settlement amount within 45 days of the agreement (see Shabini Decl. [Supplemental], ¶ 4), the agreement contains the following condition precedent:

		“20. <u>Condition Precedent – Dismissal</u>. Plaintiff acknowledges and agrees that a condition precedent to the receipt of the Settlement Amount is the full execution of this Agreement and the filing of a Request for Dismissal with prejudice of the entire action identified as Case No. 30 2022-01263671-CU-PO-CJC. <i>Defendants shall have no obligation to make any payment under this Agreement until such dismissal has been filed and confirmed.</i>” (See Shabini Decl., ¶ 3, Ex. 1, ¶ 20 [emphasis added].) To date, Plaintiff has not filed a Request for Dismissal as agreed. Therefore, Plaintiff has failed to satisfy a condition precedent. <u>Interest</u> Lastly, Defendants argue Plaintiff seeks interest and expanded relief not clearly set forth in the agreement. This argument is well taken. Plaintiff seeks interest of 10% per annum from the date of the breach, which is a request for prejudgment interest. However, the settlement agreement does not contain a provision for prejudgment interest. Therefore, there is no basis for awarding prejudgment interest. (See <i>Greentree Financial Group, Inc. v. Execute Sports, Inc.</i> (2008) 163 Cal.App.4th 495, 502 [reversing award of prejudgment interest not provided for in § 664.6 agreement: “The \$20,000 settlement sum in the stipulation (of entry of judgment) is unallocated, and may or may not have included . . . prejudgment interest. We find no basis for awarding . . . prejudgment interest in addition to the stipulated settlement sum.”].) The motion is DENIED.
4	25-01506671 <i>Dr. Erasto Gutierrez, MD, Inc. vs. Jolish RSM, LLC</i>	Demurrer to Complaint The general demurrer of defendants CWRP Mission RSM, LLC, Jolish RSM, LLC, and RSM ZG, LLC, demur to all three causes of action in the complaint of plaintiff Dr. Erasto Gutierrez, M.D., Inc., is SUSTAINED with 30 days’ leave to amend. <u>Discussion</u>. Defendants CWRP Mission RSM, LLC, Jolish RSM, LLC, and RSM ZG, LLC, demur generally to all three causes of action in the complaint of plaintiff Dr. Erasto Gutierrez, M.D., Inc. <u>First cause of action for breach of contract</u>. The first cause of action is for breach of contract and is asserted against the moving defendants as well as co-defendant Urgentmed Management, LLC. Plaintiff alleges that, on or about November 6, 2023, he entered into a written agreement with all defendants and that he is attaching copy of this agreement to the complaint as Exhibit A. (Complaint, ¶ BC-1.) Plaintiff alleges that, before entering into the agreement, which is a lease, the defendants had actual and constructive knowledge of persistent foul sewer odors permeating the premises, other units, and adjacent common areas and that defendants failed to disclose this material defect to plaintiff before it entered into the agreement.

(Complaint, Attachment BC-2.) Plaintiff alleges that this failure to disclose constituted a breach of sections 9.2 and 9.3 of the sublease and section 2.3 of the master lease. (Complaint, Attachment BC-2.) Plaintiff alleges that it suffered damages as a result of the breach of the agreement. (Complaint, Attachment BC-4.)

Moving defendants contend that the cause of action fails to set forth a claim for breach of contract against them because they never entered into a contract with plaintiff. Rather, they contend that they leased the premises to co-defendant Urgentmed Management under a written lease and that it sublet the property to plaintiff under a written sublease. They also contend that the

In its opposition, plaintiff concedes that it is not a party to the sublease. However, it contends that it is a third party beneficiary under the master lease because the sublease incorporates many of the obligations in the master lease. Plaintiff contends that, as a third party beneficiary, it may sue the moving defendants directly.

In reply, moving defendants contend that the sublease expressly provides that nothing in it creates any contract or obligation between them as master landlord and plaintiff as subtenant, citing section 2.3 of the sublease. In fact, the last sentence of section 2.3 of the sublease states that “[e]xcept as set forth in this Sublease, Subtenant will have no rights with respect to the Master Lease and Subtenant acknowledge that nothing contained herein shall be deemed to create any contract or obligations between Master Landlord and Subtenant hereunder.”

To the extent that plaintiff contends that it is a third party beneficiary, Real Property Services Corp. v. City of Pasadena (1994) 25 Cal.App.4th 375, 383, which it cites, states that “[i]t is settled law that ‘if a lessor has expressly agreed to a sublease, the sublessee is a third party beneficiary to the implied covenant of quiet enjoyment in the original lease and has the right to go directly against the lessor for its breach.’ [Citation.]”

Likewise, Marchese v. Standard Realty & Dev. Co. (1977) 74 Cal.App.3d 142, which is also cited by plaintiff in the opposition, states as follows at pp. 147-148:

The reason for the general rule that a sublessee may not sue the lessor for breach of covenant is that, as between an original lessor and a sublessee, there is no privity of contract. The sublessee is in privity only with his own sublessor. [Citation.] However, if the sublessee has assumed the covenants of the original lease, lessor is a third party beneficiary and has the right to go directly against the sublessee. [Citation.]

Similarly, it is concluded that if a lessor has expressly agreed to a sublease, the sublessee is a third party beneficiary to the implied covenant of quiet enjoyment in the original lease and has the right to go directly against the lessor for its breach. This conclusion rests upon the nature of the implied covenant of quiet

enjoyment. The promise implied from the lease is that the lessor will allow possession and quiet enjoyment of the premises during the term contracted for and will not by his own acts disturb the possession of the tenant. [Citations.] If a lessor has agreed to a sublease, it can only be concluded that he intended to allow the sublessee to peacefully occupy the property. When, as in the instant case, the lease itself contains a provision that the property may be sublet to a named party, in this case Marchese Farms, it follows that Marchese Farms is the beneficiary of lessor's promise to allow Marchese Farms to occupy the property.

Although plaintiff has alleged that the sublease incorporated portions of the master lease, it did not allege that the master landlords expressly agreed to the sublease. Furthermore, it appears that plaintiff may be foreclosed from making such allegations under section 2.3 of the sublease.

The first cause of action for breach of contract fails to set forth a claim against the moving defendants and the demurrer to this cause of action is sustained.

Second cause of action for negligence. The second cause of action is for general negligence and is asserted against all defendants.

In this cause of action, plaintiff alleges that, before entering into “the lease” with it, all defendants “had actual and constructive knowledge of persistent foul sewer odors permeating the Premises, other units and adjacent common areas.” (Complaint, ¶ GN-1.) Plaintiff alleges that, “[d]espite this, [the defendants] failed to disclose the material defect to Plaintiff prior to lease execution” and that “[t]hese are breaches of section 9.2 of the Sublease.” (Complaint, ¶ GN-1.)

Moving defendants contend that this cause of action fails because the allegations do not show that they owed the plaintiff a duty of care, which is the one of the essential elements of a cause of action for negligence. Friedman v. Merck & Co., Inc. (2003) 107 Cal.App.4th 454, 462.

According to Archer v. Coinbase, Inc. (2020) 53 Cal.App.5th 266, 278, which is cited by the moving defendants, to prevail in a negligence action, a plaintiff must establish that the defendant owed a legal duty, the defendant breached that duty, and that the breach proximately caused the plaintiff's damages. Absent a legal duty, any injury is an injury without actionable wrong. Ibid. Furthermore, duty is a question of law. Ibid.

In addition, a person may not ordinarily recover in tort for the breach of duties that merely restate contractual obligations. Archer v. Coinbase, Inc., supra, 53 Cal.App.5th 266, 278, Thus, a plaintiff may not recover in tort based solely on allegations that a defendant. Ibid. A breach of

		contract is tortious only when some independent duty arising from tort law is violated. <u>Ibid.</u> Here, notwithstanding the moving defendants' status as the master landlord, the second cause of action does not show that they owed plaintiff a duty of care to disclose the existence of the sewer odors to plaintiff before it entered into the sublease with co-defendant Urgentmed Management. Moreover, plaintiff is attempting to enforce contractual provisions rather than some independent duty. The second cause of action for negligence fails to set forth a claim against the moving defendants and the demurrer to this cause of action is sustained. <u>Third cause of action for fraud based on intentional misrepresentation and concealment.</u> The third cause of action is for fraud based on intentional misrepresentation and concealment. Like the first two causes of action, it is asserted against all defendants. Also, like the first two causes of action, the third cause of action refers to all defendants, i.e., the moving defendants and co-defendant Urgentmed Management, collectively as "the landlord" when, in fact, the sublease and master lease that are attached to the complaint show that moving defendants are the master landlord and parties to the lease with co-defendant and that the co-defendant is a party to the sublease with plaintiff. In spite of this distinction, plaintiff alleges that "the landlord" made certain representations with respect to the leasing of the premises and that they failed to disclose known defects in the property to plaintiff. (See Complaint, ¶ FR-2.) Because the cause of action fails to distinguish between the moving defendants and the co-defendants, it is not pled with the specificity required of a claim for fraud. Specifically, it is unclear as to who exactly made the purported representations, how the representations were made, and when they were made. It also does not provide any information as to how defendants would have owed plaintiff a duty to disclose any defects in the property. The third cause of action for fraud fails to set forth a claim against the moving defendants and the demurrer to this cause of action is sustained.
6	26-0156888 <i>Howden US Services, LLC vs. Acrisure of California, LLC</i>	Preliminary Injunction Plaintiffs Howden US Services, LLC, Howden US Specialty, LLC and Patrick Thomas' request for a preliminary injunction is DENIED. Likelihood of prevailing on the merits The burden is on the party "seeking injunctive relief, to show all elements necessary to support issuance of a preliminary injunction." (<i>O'Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481 [citation omitted].) "In deciding whether to issue a preliminary injunction, a court must weigh two 'interrelated' factors: (1) the

likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction.” (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678 [citation omitted].) “The trial court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.” (*Id.* at p. 678 [citation omitted].)

Cause of action for unfair competition

The Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.* (1999) 20 Cal.4th 163, 180.) “By proscribing ‘any unlawful’ business practice, ‘section 17200 ‘borrows’ violations of other laws and treats them as unlawful practices’ that the unfair competition law makes independently actionable.” (*Ibid.* [citations omitted].) Virtually any law or regulation can serve as predicate for a section 17200 “unlawful” violation. (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681 [citation omitted].)

“California courts have applied a variety of tests to determine whether a business practice is unfair under the UCL. “Under the UCL’s unfairness prong, courts consider either: (1) whether the challenged conduct is ‘tethered to any underlying constitutional, statutory or regulatory provision, or that it threatens an incipient violation of an antitrust law, or violates the policy or spirit of an antitrust law,’; (2) whether the practice is ‘immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers,’; or (3) whether the practice’s impact on the victim outweighs ‘the reasons, justifications and motives of the alleged wrongdoer.’” (*Naranjo v. Doctors Medical Center of Modesto, Inc.* (2025) 111 Cal.App.5th 408, 437 [cleaned up].)

Finally, “[w]hether a business practice is deceptive under the ‘fraudulent’ prong of the UCL is based on the likely effect such practice would have on a reasonable consumer. ‘Likely to deceive’ for purposes of the UCL indicates it is probable that a significant portion of the general consuming public or of targeted consumers, acting reasonably in the circumstances, could be misled. . . . A perfectly true statement couched in such a manner that it is likely to mislead or deceive the consumer, such as by failure to disclose other relevant information, is actionable under the UCL. (*Sepanossian v. National Ready Mix Concrete Co.* (2023) 97 Cal.App.5th 192, 200 [cleaned up].”

Emails sent by Acrisure

Plaintiffs contend emails sent by Acrisure beginning on 5/19/26 were fraudulent, unlawful, and unfair as they led clients to believe they related to the client’s recent decision to switch to Howden US from Acrisure rather than having intended opposite effect, i.e., to *rescind* the

client's designation of Howden US as broker of record and reinstate Acrisure.

Specifically, Plaintiffs contend the subject line of these cold emails simply said "Rescinding AOR [Agent of Record]" followed by the client's name, and the body of the email only said "[name of sender] sent you a document to review and sign." (Thomas Decl., ¶ 31, Ex. 2.) As such, Plaintiffs contend that without context, a reasonable client would believe that these emails, which came from an "@acrisurellc.com" email address, were transmitting documents relating to the client's recent decision to switch to Howden US from Acrisure, and not the other way around.

Second, Plaintiffs contend the linked document itself contained a BOR letter that was already pre-drafted on the client's letterhead which was intended to suggest the letters were documenting a decision that had already been communicated (i.e., the client's initial switch to Howden US). (Thomas Decl., ¶ 40, Ex. 9.)

The parties do not dispute the emails reflect they were being sent from an Acrisure email as they included the email domain "@acrisurellc.com."

The one-page letter attached to the email states:

This will confirm that **Acrisure LLC** is appointed Agent of Record / Broker of Record on all insurance matters in connection with the referenced insured effective immediately.

This appointment supersedes and revokes any previous Agent of Record / Broker of Record letter, and will remain in force until cancelled by an officer of this Company.

This letter also constitutes the authority of any Insurer or Underwriter to furnish Acrisure any information or data that may be required in order to respond to our present and future insurance needs.

(Thomas Decl., Ex. 9 [emphasis in original].)

The letter consists of only three sentences, clearly states it appoints Acrisure LLC (which is written in bold) as Agent of Record/Broker of Record on all insurance matters, and that it supersedes and revokes any previous Agent of Record/Broker of Record letter. As such, it is neither verbose nor does it consist of any particularly complex words or legal jargon.

Thus, while a "reasonable consumer" need not be 'exceptionally acute and sophisticated' (*Lavie v. Procter & Gamble Co.* (2003) 105 Cal.App.4th 496, 509-510 [citation omitted]), Plaintiff does not demonstrate a reasonable consumer would not read a one-page, three-sentence letter before signing it.

Moreover, while “[a] perfectly true statement” may be actionable under the UCL if “couched in such a manner that it is likely to mislead or deceive the consumer, such as by failure to disclose other relevant information,” (*Sepanossian, supra*, 97 Cal.App.5th at p. 200 [cleaned up]), the Court does not find the letter is couched in such a manner.

Finally, Defendants contend the emails “were not intended to operate as standalone solicitations sprung upon unsuspecting clients,” (Resp. at 13:13-14), but that Acrisure agents were instructed to explain the practical effects of switching brokers mid-policy term to the insured and advise them why it would be in their best interest to sign the rescission letter and remain with Acrisure at least until the end of their policy terms.

The declaration of Megan Young, previously Acrisure’s Principal/Account Executive and now current Manager of Large Commercial Operations, Transportation – Midwest, states:

During meetings with Acrisure Truck Group, which occurred multiple times a week starting the second week of April, my supervisor Paul Zizzo and I verbally instructed Client Advisors to reach out to each of their newly assigned insureds to introduce themselves and establish continuity of service from Acrisure, if desired. In particular, we directed Client Advisors to inform these insureds of the potential consequences of switching their broker-of-record during the middle of a policy term.

(Young Decl., ¶ 19.)

In response, Plaintiffs contend, “Even were it true that Client Advisors were instructed to speak with clients before Effika sent the Docusigns, there is no evidence that Client Advisors actually did so, or that these Client Advisors had these conversations prior to the Effika emails being blasted out.” (Reply at 4:21-23.)

The declaration of Zubin Nuggud, a Client Advisor for Acrisure states, “Young directed Client Advisors to inform the insureds formerly serviced by the Departed Employees of the potential consequences of switching their broker-of-record during the middle of a policy term, and to let them know they would receive a rescinding AOR/BOR Letter from Acrisure in case they wanted to continue working with Acrisure as their agent or broker-of-record for the time being.” (Nuggud Dec., ¶ 10.) Nuggud further states, “I took Ms. Young’s direction by calling and emailing the specific insureds assigned to me over the next few days and weeks. (Nuggud Decl., ¶ 11.)

Nuggud attaches one such email to his declaration, which was sent to Acrisure client Multimodal Esquer, Inc., who had provided an AOR/BOR Letter on 4/14/26, appointing Howden as their agent or broker-of-record. (Nuggud Decl., ¶ 12.)

Nuggud's 4/17/26 email states, in part:

My name is Zubin Nuggud, and I am a Client Advisor who specializes in trucking with Acrisure.

There have been some very recent changes here and I wanted to let you know your agent Jerry Rodriguez is no longer with our company. I have been assigned your policy and will be your new agent/client advisor.

I see you have already signed a BOR for another agency, and I was hoping we can retain your business and not have you and your MC go through the pains of switching agents and carriers etc. *Are you willing to sign a rescinding BOR keeping Acrisure as your agent? If so, please let me know and I will send the form for you to sign. . . .*

(Nuggud Decl., ¶ 12, Ex. 2 [emphasis added].)

The client responded, "Can you take a call? If yes please confirm time and number." (Nuggud Decl., ¶ 12, Ex. 2.)

Nuggud's email clearly states he notes the client has signed a BOR for another agency, that he hoped to retain the client's business, and asked whether the client would be "willing to a sign a rescinding BOR keeping Acrisure as your agent." (Nuggud Decl., ¶ 12, Ex. 2.) This is consistent with the content of the document attached to the emails, which refer to rescinding a BOR. This also supports Defendants' contention Acrisure agents were instructed to provide context for the emails and their content prior to their delivery.

Given the above, the Court finds Plaintiffs have not demonstrated the likelihood of prevailing on their claim the emails were unfair or fraudulent under the UCL.

Insurance Code section 1631

Plaintiffs further contend the emails were unlawful as they violated Insurance Code section 1631.

Sections 1631 and 1623, subdivision (a) of the Insurance Code prohibit an unlicensed person from soliciting, negotiating, or effecting "contracts of insurance" or acting "as an insurance broker," i.e., "a person who, for compensation and on behalf of another person, transacts insurance . . . with . . . an admitted insurer."

Section 22 provides, "Insurance is a contract whereby one undertakes to indemnify another against loss, damage, or liability arising from a contingent or unknown event." Section 380 provides, "The written instrument, in which a contract of insurance is set forth, is the policy."

Defendants contend an AOR/BOR is not a "contract of insurance, but rather, "the predicate instrument that authorizes a broker to transact

insurance.” (Resp. at 14:8-9.) Plaintiffs contend only Defendants fail to cite authority in support of this contention. (Reply 7:15-17.)

The letter attached to an email does not purport to indemnify the client against loss, damage, or liability. Nor does it purport to constitute any form of an insurance policy.

As set forth above, it is Plaintiffs’ duty to show all elements necessary to support issuance of a preliminary injunction.

The Court finds Plaintiffs have not demonstrated the likelihood of prevailing on their claim the emails were unlawful pursuant to Insurance Code section 1631.

Business and Professions Code section 17529.5(a), (2)-(3)

Plaintiffs also contend the emails were unlawful as they violated Business and Professions Code section 17529.5.

Business and Professions Code section 17529.5, subdivisions (a)(2), (a)(3), make it “unlawful for any person or entity to advertise in a commercial e-mail advertisement” where the advertisement “contains or is accompanied by falsified, misrepresented, or forged header information,” or “has a subject line that a person knows would be likely to mislead a recipient, acting reasonably under the circumstances, about a material fact regarding the contents or subject matter of the message.”

Section 17529.1, subdivision (c) defines “[c]ommercial e-mail advertisement” to mean any electronic mail message initiated for the purpose of advertising or promoting the lease, sale, rental, gift offer, or other disposition of any property, goods, services, or extension of credit.

Domain names are part of the e-mail header information within the meaning of section 17529.5, subdivision (a)(2). (*See Kleffman v. Vonage Holdings Corp.* (2010) 49 Cal.4th 334, 340.) Plaintiffs do not contend the domain name, “@acrisurellc.com,” was forged or falsified.

Nor do Plaintiffs demonstrate the email and its contents were accompanied by misrepresented header information or had a subject line that would likely mislead the recipient about the contents of the email.

The subject line of the emails, “Rescinding AOR” (followed by the client’s name), accurately reflects what the attached letter purported to do, that is rescind Howden US as broker of record and reappoint Acrisure. It is also consistent with what Defendants’ Client Advisors were directed to inform clients about regarding receiving a rescinding BOR from Acrisure.

The Court finds Plaintiffs have not demonstrated the likelihood of prevailing on their claim the emails were unlawful pursuant to Business and Professions Code section 17529.51.

Cause of action for tortious interference with prospective economic advantage.

“An interference with prospective economic advantage cause of action requires (1) an economic relationship between the plaintiff and some third party, with the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) the defendant's intentional acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to the plaintiff proximately caused by the defendant's acts. The plaintiff must also prove that the defendant engaged in an independently wrongful act in disrupting the relationship. In this regard, an act is independently wrongful if it is unlawful, that is, if it is proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard.” (*SC Manufactured Homes, Inc. v. Canyon View Estates, Inc.* (2007) 148 Cal.App.4th 663, 671 fn. 7 [cleaned up].)

For the reasons discussed above, the Court find Plaintiffs have not demonstrated “an independently wrongful act in disrupting the relationship” and therefore have not demonstrated the likelihood of prevailing on this claim.

Balancing of harm

“An evaluation of the relative harm to the parties upon the granting or denial of a preliminary injunction requires consideration of: ‘(1) the inadequacy of any other remedy; (2) the degree of irreparable injury the denial of the injunction will cause; (3) the necessity to preserve the status quo; [and] (4) the degree of adverse effect on the public interest or interests of third parties the granting of the injunction will cause.’” (*Vo v. City of Garden Grove* (2004) 115 Cal.App.4th 425, 435 [citation omitted].)

Plaintiffs contend they are at risk of harm by Defendants’ conduct as it has the effect of stealing clients from Howden US and posing a risk of loss of Howden US’s reputation and goodwill.

Plaintiffs’ contentions as to the purported harm (e.g., losing clients) rely on their premise Defendants’ conduct with respect to the emails is unlawful and deceptive. As discussed above, however, Plaintiffs have not demonstrated such conduct was unlawful or fraudulent.

Plaintiffs further contend at least three Howden US customers unwittingly signed the rescission letter, but that an unknown number of others “may have already succumbed to the deception.” (Reply at 8:18-19; Thomas Decl., ¶ 54.)

As an initial matter, as the emailing of BOR letters to specific impacted insured has already been completed, Defendants do not intend to use the third party service to send any further AOR/BOR Letters to impacted insureds in the foreseeable future. (Young Decl., ¶ 25.)

		Moreover, Plaintiffs’ contention others “may have succumbed” to the deception is merely speculative and the fact that other clients may have signed the BOR does not necessarily indicate they did so only because they were deceived. Finally, in the event Plaintiffs succeed on their claims, they would be entitled to legal damages as compensation for harm suffered. Plaintiffs can demonstrate, for example, the profit it would have earned for each client they claim was impacted by Defendants’ conduct. Accordingly, Plaintiffs have not sufficiently shown the balancing of harm lies in their favor.
7	24-01406442 <i>Jacobson vs. Thomas</i>	Motion to Compel Production Plaintiff Steven Jacobson’s Motion to Compel Defendant Radnet Management, Inc.’s Further Responses Plaintiff’s Requests for Production, set six, is DENIED. Plaintiff’s requests for production nos. 49 and 50 seek information related to claimed violations of Business and Professions Code section 655.8. Radent’s responses sufficiently identify the relevant information to show there was no violation and Plaintiff fails to present any evidence to show there is a need for further discovery. “It is unlawful for any person licensed under this division or under any initiative act referred to in this division to charge, bill, or otherwise solicit payment from any patient, client, customer, or third-party payer for performance of the technical component of Computerized Tomography (CT), Positron Emission Tomography (PET), or Magnetic Resonance Imaging (MRI) diagnostic imaging services if those services were not actually rendered by the licensee or a person under his or her supervision.” (Bus. & Prof. Code, § 655.8(a).) “Nothing in this section prohibits a licensee or a physician entity from billing globally for professional and technical components if both of the following conditions are met: [¶] (1) Neither the physician, or any member of his or her medical group, nor the physician entity has ordered the diagnostic imaging services. [¶] (2) The physician, or a member of his or her medical group, or the physician entity provides the professional interpretation of the diagnostic imaging service.” (Bus. & Prof. Code, § 655.8(d).) First, the imaging was ordered by William Thomas, DC, who is not affiliated with BRMG III. (Iacopino Decl., ¶ 9.) Second, BRMG III has a contract with Santa Ana Tustin Radiology Medical Group (SATR) who provides radiologists to interpret imaging studies done at BRMG III. (Iacopino Decl., ¶ 8.) Dr. Patel interpreted Plaintiff’s imaging studies pursuant to this contract between BRMG III and SATR. (Iacopino Decl., ¶ 8.) Thus, there was no violation of Section 655.8 as claimed by Plaintiff and Plaintiff fails to show there is any need to order further discovery into the matter.

8	25-01452596 <i>Joseph Construction vs. Kenney</i>	Motion for Summary Judgment and/or Adjudication OFF CALENDAR
9	22-01292736 <i>Martin vs. The Stag Bar, Inc.</i>	Motion to Compel Production Defendant The Stag Bar, Inc.’s Motion to Compel Compliance or Terminating Sanctions is GRANTED in part as to the request for terminating sanctions. Terminating sanctions are appropriate when the “violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal.App.4th 262, 279.) “[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.” (<i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559.) “A trial court has broad discretion when imposing a discovery sanction.” (<i>Ibid.</i>) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) Plaintiff was ordered to provide responses to Defendant’s Requests for Production, set two, on January 22, 2026 within 20 days and without objections. Plaintiff served responses with objections and without producing any documents on February 19, 2026. (Deng Decl., Ex. C.) Thus, her responses were late, failed to comply with the Court’s order, and importantly failed to attach the responsive documents. Defendant has contacted Plaintiff numerous times to request the responsive documents and Plaintiff has repeatedly failed to produce them despite promising to do so for over four months. Further, Plaintiff failed to comply with the required pretrial filings which would have included producing her updated medical records when the trial was pending on April 13, 2026. Thus, Plaintiff has demonstrated she is unwilling to comply with her discovery obligations even when ordered by this Court or when trial is pending in less than a week. Therefore, the Court finds Plaintiff’s violation is willful and less severe sanctions in the Court’s previous order were ineffective. Accordingly, terminating sanctions are appropriate.
10	25-01504866 <i>Martinez vs. Saravia</i>	Motion to Strike To the extent that the motion of defendants Edith Martinez and Sandra Rojas to strike the punitive damages request in the complaint of Edith Martinez and Sandra Rojas is not MOOT, it is DENIED for failure to comply with CRC 3.1322(a). <u>Discussion.</u> Per the notice of motion, defendants Braulio Saravia and Maria L. Saravia “move the Court to strike the punitive damages request in the Complaint filed by Plaintiffs EDITH MARTINEZ and SANDRA ROJAS.”

		Defendants have failed to specify exactly what they want stricken from the complaint, as required under subdivision (a) of CRC 3.1322. That subdivision states: A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively. The Court cannot grant the relief requested because it does not know specifically what defendants want it to strike. Furthermore, plaintiffs filed a first amended complaint on October 2, 2025, which means that it is the operative pleading in the action and that the (initial) complaint has been superseded. Thus, to the extent that defendants are seeking to strike portions of the complaint – as opposed to the first amended complaint – as stated in the notice of motion, the motion is moot.
11	25-01460537 <i>Palomino vs. FCA US, LLC</i>	Motion to Compel Production Plaintiff Eduardo Palomino’s Motion to Compel Further Compliance with Code of Civil Procedure section 871.26 is CONTINUED to _. Defendant produced numerous documents in response to its initial disclosure obligations. Plaintiff seeks additional documents he claims are responsive but were not produced. Plaintiff has failed to show any attempts to meet and confer prior to filing its Motion. The parties are ordered to engage in additional meet and confer efforts, including an in-person, telephonic, or videoconference meeting of counsel, no later than 30 calendar days prior to the continued hearing date. If Defendant agrees to serve supplemental responses, Defendant shall serve supplemental verified responses and produce additional documents no later than 20 calendar days prior to the continued hearing date. Plaintiffs’ counsel shall file and serve a supplemental declaration, no later than 9 court days before the continued hearing date and not to exceed five pages, including: (1) a description of the parties’ additional attempts to meet and confer; (2) attaching a copy of Defendant’s supplemental responses, if any; and (3) a concise description of any remaining dispute including identification of the specific requests which remain in dispute. Defendant’s counsel may file a responsive supplemental declaration, not to exceed three pages, no later than 5 calendar days before the continued hearing date.

13	24-01438676 <i>Parker vs. General Motors, LLC</i>	1) Demurrer to Amended Complaint 2) Motion to Strike Portions Of Complaint Defendant General Motors, LLC’s Demurrer and Motion to Strike Portions of the Second Amended Complaint (SAC) are CONTINUED to _____. Plaintiff failed to file the SAC with the Court. Plaintiff is ORDERED to file the SAC with 5 days of this order.
14	24-01421074 <i>Robertson’s Ready Mix, Ltd. vs. We R Builders</i>	Demurrer to Cross-Complaint Complaint of Cross-Complainant We R Builders (WRB) is SUSTAINED with leave to amend. The City’s request for judicial notice of the absence of a request to initiate a meet and confer process or attend mediation under the Public Contracts Code is granted. (Evid. Code § 452(c), (h); Fowler v. Howell (1996) 42 Cal.App.4th 1746, 1752-1753 [taking judicial notice of lack of government claim in government records].) “If a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity’s records do not show compliance.” (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 376.) WRB’s Cross-Complaint filed on 4/21/25 alleges the City breached the parties’ contract by failing to pay for additional material and labor related to a sidewalk improvement project. In the Demurrer, the City contends WRB “failed to fully comply with the applicable claim presentation requirement for a Public Works Contract under Public Contract Code § 9204.” (Motion, p. 2.) The City cites an “elaborate claims presentation and administrative remedy process regarding Public Works contracts was added by the California Legislature in 2016,” including the requirement that the parties to the dispute meet and confer and attend non-binding mediation prior to filing suit. (Pub. Contracts Code § 9204(d).) Although those rights can be waived, the City asserts that here, WRB only filed a claim and the City responded, but WRB failed to take the next steps of demanding an informal conference or attending mediation. Therefore, the City asserts WRB did not fully exhaust the mandatory administrative process. In opposition, WRB contends the request for judicial notice is improper, but WRB fails to cite case law contrary to Fowler v. Howell (1996) 42 Cal.App.4th 1746, 1752-1753 and Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 376, which allow the Court to take judicial notice of the absence of compliance with government tort claims requirements. WRB next argues it adequately alleged exhaustion of administrative remedies at paragraph 8 of the Cross-Complaint, which states the following: “Plaintiff timely served its claim under the contract documents, which was denied. Plaintiff submitted a formal claim on September 3, 2024

	that went unresolved. On October 24, 2024, Plaintiff timely served a claim under Public Contract Code Section 9204. Also, on October 24, 2024, Plaintiff timely served its claim pursuant to Government Code Section 910 and the City’s provided claim form. The CITY responded to Plaintiff on or about December 11, 2024, disputing the claim amount. Under Section 910, the claim is deemed rejected and under Section 945.6, Plaintiff has two (2) years from the accrual of its claim to file suit.” WRB further alleges that because the City’s position was firm, further exhaustion of remedies would have been futile. 1. WRB has not adequately pled its compliance with the mandatory claims process under the Public Contracts Code, including demanding an informal conference and pursuing mediation. WRB has failed to cite legal authority excusing its admitted noncompliance. Therefore, the demurrer is sustained.
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